

The present DHR herein has instituted O.S.No.1536/2013, in the said suit the Plaintiff has sought the direction against the Defendant who is JDR herein, to quit, vacate and deliver vacant possession of the schedule "B" property after demolishing the temporary shed and bathrooms constructed therein.

After fullfleged trial, this court has dismissed the said suit. Being aggrieved by the judgment and decree passed by this court in O.S.No.1536/2013, the Plaintiff who is DHR herein has preferred RFA No.139/2016 before Hon'ble High court of Karnataka, wherein, Hon'ble High court of Karnataka has allowed the appeal and decreed the suit of the Plaintiff in part and set aside the judgment and decree passed in O.S.No.1536/2013. Further the Hon'ble High court of Karnataka has restrained the Defendant No.1, his agents, servants or any body claiming under Defendant No.1 from interfering in the use of schedule "B" property by Plaintiff as a common passage. Even Hon'ble High court of Karnataka has also passed the decree. But

Hon'ble High court of Karnataka in the said judgment or decree has nowhere ordered with respect to the removable of the structure as prayed in the plaint. But the Plaintiff who is the DHR herein has filed the Petition and sought the direction of this court against the JDR/Defendant to remove the iron structures fixed in the common passage I.e, in "B" schedule property.

Whatever he is claiming relief under the execution petition has not been granted either in the judgment or in the decree passed by the Hon'ble High court of Karnataka in RFA No.139/2016. In absence of such order, this court can't go beyond the decree of the Hon'ble High court of Karnataka and proceed with this petition against the JDR, hence under these circumstances the petition does not survive for consideration and deserves to be dismissed and thereby the petition is dismissed.

In view of the dismissal of the execution petition all pending IAs are disposed.